

tolerated in a civilized community. (*Christensen v. Superior Court* (1991) 54 Cal.3d 868, 903.)

Employment actions can involve outrageous conduct. (*Murray v. Oceanside Unified School Dist.* (2000) 79 Cal.App.4th 1338, 1362-1363; *Fisher v. San Pedro Peninsula Hospital* (1989) 214 Cal.App.3d 590, 618.) However, “personnel management activity is insufficient to support a claim of intentional infliction of emotional distress, even if improper motivation is alleged.” (*Janken v. GM Hughes Electronics* (1996) 46 Cal.App.4th 55, 80.) Where personnel management decisions are improperly motivated, the remedy lies in a statutory discrimination claim rather than a tort claim for emotional distress. (*Ibid.*)

Plaintiff argues that because the same facts support his FEHA claims, they also support a “derivative” IIED claim. The Court disagrees. An IIED claim is subject to a higher pleading standard and conduct sufficient to alter working conditions under FEHA may still fall short of the extreme and outrageous conduct required for IIED.

The facts Plaintiff identifies in support of his IIED claim consist of allegations that he was treated unfairly, that his complaints were ignored, that supervisors spoke to him in a demeaning or unprofessional manner, that he was accused of misconduct, that Human Resources and the school board failed to respond, and that he received work-related emails while on medical leave. Even accepted as true, this does not exceed all bounds tolerated in a civilized society and therefore does not constitute extreme and outrageous conduct. Absent additional aggravating circumstances, such allegations may support statutory employment claims, but they are insufficient to state a claim for IIED.

Accordingly, the demurrer to the eighth cause of action is **sustained with leave to amend**.

Disposition

Defendant’s demurrer to the second cause of action for hostile work environment harassment is **overruled** and its demurrer to the eighth cause of action for intentional infliction of emotional distress is **sustained with leave to amend**. Defendant shall prepare the order and serve notice of entry of order. Plaintiff shall have 30 days from service of notice of entry of order in which to file and serve an amended complaint.

13. 9:00 AM CASE NUMBER: C25-01696
CASE NAME: PAUL RAPIER VS. CATHERINE FOSTER
***HEARING ON MOTION IN RE: TO STRIKE PUNITIVE DAMAGE DEMAND**
FILED BY: FOSTER, CATHERINE
TENTATIVE RULING:

The hearing on this Motion is vacated. (See Notice of Withdrawal of Motion filed 12/5/25.)